

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Catherine McCaw	Team: Team # 4	CCRB Case #: 200506274	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Sunday, 06/05/2005 11:00 AM	Location of Incident: § 87(2)(b), Manhattan	18 Mo. SOL 12/5/2006	Precinct: 01
Date/Time CV Reported Mon, 06/06/2005 2:00 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 06/06/2005 2:00 PM

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. POM Nicholas Soto	03854	933378	001 PCT
2. POM Daniel Guerra	03243	932755	001 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Nicholas Soto	Abuse: PO Nicholas Soto instructed § 87(2)(b) to close his store on June 5, 2005.	A . Substantiated
B . POM Daniel Guerra	Abuse: PO Daniel Guerra instructed § 87(2)(b) to close his store on June 5, 2005.	B . Substantiated
C . POM Nicholas Soto	Force: PO Nicholas Soto used physical force against § 87(2)(b) on June 5, 2005.	C . Substantiated
D . POM Nicholas Soto	Abuse: PO Nicholas Soto threatened to close § 87(2)(b) s store on June 7, 2005.	D . Unsubstantiated
E . POM Nicholas Soto	Abuse: PO Nicholas Soto threatened to arrest § 87(2)(b) on June 7, 2005.	E . Unsubstantiated

Synopsis

On June 5, 2005, at approximately 11:00 AM, § 87(2)(b) and his wife, § 87(2)(b) were working in their store located at § 87(2)(b) in Manhattan. PO Nicholas Soto and PO Daniel Guerra walked past the store, and PO Soto stated that he saw § 87(2)(b) selling counterfeit merchandise. PO Soto and PO Guerra instructed § 87(2)(b) and § 87(2)(b) to close their store down for the day (Allegations A and B). § 87(2)(b) began to argue with PO Soto. PO Soto grabbed § 87(2)(b) by the shoulders and pushed him against the wall (Allegation C). § 87(2)(b) closed his store down for the day, and PO Soto and PO Guerra left. Two days later, on June 7, 2005, PO Soto came back to § 87(2)(b)'s store because he had learned from PO Guerra that § 87(2)(b) allegedly sustained an injury due to the physical force used against him on June 5, 2005. PO Soto and § 87(2)(b) again got into an argument, during which PO Soto allegedly threatened to see to it that his store was shut down permanently and threatened to arrest § 87(2)(b) (Allegations D and E).

PO Soto and PO Guerra admitted to instructing § 87(2)(b) and § 87(2)(b) to close their store for the day. § 87(2)(b) it is recommended that allegations A and B be *substantiated*. § 87(2)(g) it is recommended that allegation C also be substantiated. § 87(2)(g) it is recommended that allegations D and E be *unsubstantiated*.

Summary of Complaint

§ 87(2)(b) filed a complaint with the CCRB on June 6, 2005. On June 8, 2005, § 87(2)(b) provided an initial telephone statement, and later the same day, gave an official statement to the CCRB. § 87(2)(g) His intake statement, however, was given in English, a language in which § 87(2)(b) is not proficient, § 87(2)(g). Subsequent interviews were conducted in Mandarin. All direct quotations, however, were given by § 87(2)(b) in English.

§ 87(2)(b) stated that he owns a shop located on § 87(2)(b) in Manhattan. Though § 87(2)(b)'s store occupies the majority of the space at § 87(2)(b) he shares it with several other merchants. § 87(2)(b)'s store sells handbags, film, batteries and scarves, none of which is counterfeit, according to § 87(2)(b). On June 5, 2005, at approximately 11:00 AM, § 87(2)(b) was standing outside of his store on the street, and his wife, § 87(2)(b) was standing inside the store assisting a customer. As officers subsequently identified as PO Nicholas Soto and PO Daniel Guerra walked by, § 87(2)(b) handed a customer a handbag in a black bag. After seeing this transaction, PO Soto instructed § 87(2)(b) to shut down his store, waving his hand up and down. PO Guerra was standing right next to PO Soto. § 87(2)(b) asked why PO Soto was telling him to close his store, and PO Soto told him he was selling counterfeit merchandise and stated that he knew that § 87(2)(b) was giving the customer a counterfeit handbag because she appeared to be nervous.

An argument ensued between § 87(2)(b) and PO Soto. PO Soto insisted that § 87(2)(b) was storing counterfeit merchandise in a warehouse around the corner and demanded his key. § 87(2)(b) refused to give it to him. The argument continued, and PO Soto grabbed § 87(2)(b) by the shoulders, pushed him against the back wall of his shop and shook him several times. During § 87(2)(b)'s intake statement, instead of saying that PO Soto pushed him, he stated that he punched him in the hand. § 87(2)(b) stated that when he went home later and took off his shirt, he noticed that he had received a scratch on his shoulder. He assumed that PO Soto had caused the scratch, though he was not certain how he had sustained it. The scratch was still visible at the time of interview (see enclosure 7c). After PO Soto pushed him, § 87(2)(b) felt like he had no choice but to close his store. PO Soto was insisting that he should shut down his store for two weeks, but § 87(2)(b) did not intend to obey him. As § 87(2)(b) was closing, PO Soto told him, "I don't want to see you around Chinatown anymore."

The next day, § 87(2)(b) saw PO Guerra with a different partner. PO Guerra asked § 87(2)(b) why he had not shut down his store for two weeks as instructed. § 87(2)(b) informed PO Guerra that PO Soto had scratched him the previous day and showed the scratch to PO Guerra. PO Guerra told § 87(2)(b) that he would tell PO Soto to come to § 87(2)(b)'s store.

On June 7, 2005, PO Soto and another officer approached § 87(2)(b)'s store in a patrol car. PO Soto motioned for § 87(2)(b) to approach the patrol car. When § 87(2)(b) arrived at the car, PO Soto asked him whether § 87(2)(b) was claiming that PO Soto had given him the mark on his shoulder. § 87(2)(b) said that he was. PO Soto asked § 87(2)(b) whether § 87(2)(b) intended to sue him and told him, "Me out; you out." PO Soto then exited his car, entered the store and said something to § 87(2)(b)'s customers that § 87(2)(b) could not hear. He said to § 87(2)(b) "You Chinese people, you open stores here. I tell you to close and you should close. I will close your store in five days." PO Soto also told § 87(2)(b) "I want to arrest you and your wife." § 87(2)(b) told PO Soto that he could arrest § 87(2)(b) if he wanted, but PO Soto did not place § 87(2)(b) under arrest and instead left the store.

Results of Investigation

Civilian Witnesses

§ 87(2)(b)

§ 87(2)(b) was interviewed by the CCRB on June 8, 2005. The interview was conducted in Mandarin. All direct quotations are § 87(2)(b)'s English words.

She stated that on June 5, 2005, she was working in her store with her husband at § 87(2)(b) in Manhattan when PO Nicholas Soto and PO Daniel Guerra passed the store and stood outside. As they were watching, § 87(2)(b) handed a customer a handbag in a black bag. The customer had informed § 87(2)(b) that she wanted an exchange because the previous handbag was defective. § 87(2)(b) went outside to find out what the officers wanted, and both said, "Close." § 87(2)(b) and § 87(2)(b) began to protest, and both officers said, "Close. Close," waving their hands up and down. § 87(2)(b) began to protest further, and PO Soto stated that § 87(2)(b) had counterfeit merchandise in his warehouse and demanded § 87(2)(b)'s keys to check, but § 87(2)(b) refused to give them to PO Soto. PO Soto touched § 87(2)(b)'s sides in a way that § 87(2)(b) interpreted as a lunge for his keys. § 87(2)(b) protested that PO Soto did not have the right to touch him, and PO Soto grabbed § 87(2)(b) by the shoulders and pushed him backwards seven feet against a wall of the building causing purses to fall from the wall. He continued to shake § 87(2)(b) numerous times against the back of the wall, causing handbags that were hanging from the wall to fall. After PO Soto pushed § 87(2)(b) he agreed to close his store for the day. PO Soto said, "No – two days. A week." PO Guerra said, "Two weeks." § 87(2)(b) and § 87(2)(b) closed their store for the day, and the officers left.

The next day, at approximately 11:00 AM, PO Guerra and a different officer approached § 87(2)(b) and § 87(2)(b)'s store. PO Guerra motioned with his fingers for the store to be shut down and said, "Close. Did you forget yesterday? I told you to close the store for two weeks." § 87(2)(b) told PO Guerra that PO Soto had injured her husband the day before. The officers went outside the store, talking to each other and gesturing towards § 87(2)(b)'s shoulder. Both officers then departed.

On June 7, 2005, sometime in the morning, PO Soto and another officer drove to § 87(2)(b) and § 87(2)(b)'s store. PO Soto motioned for § 87(2)(b) to come to the car. § 87(2)(b) could not hear everything that PO Soto and § 87(2)(b) were saying, but she could hear when their voices rose. PO Soto said, "I've been nice so far. No more. I don't like to see your store anymore," and he said he would close the store in five days. PO Soto then went into the store and asked to speak with § 87(2)(b) who sells jewelry and watches within the same space, while § 87(2)(b) and § 87(2)(b) waited outside. He came out of the store and spoke said, "I don't want to hear you. I don't want to speak with you. I will close your store in five days. I treat you Chinese too nice." At some point in time during the course of the incident, PO Soto also said, "I will arrest you in jail," and, "If you go to lawyers, you lay me out, I lay you out." § 87(2)(b) did not specify at what point during the interaction PO Soto made these remarks. The officers then left.

§ 87(2)(b)

§ 87(2)(b) sells jewelry and watches in the same space as § 87(2)(b). He was interviewed by the CCRB on June 28, 2005. He stated that on June 5, 2005, at approximately 11:00 AM, he saw PO Soto and PO Guerra speaking to § 87(2)(b) outside of his store and asking him something about a key. § 87(2)(b) could not hear

all of their conversation. § 87(2)(b) and PO Soto were arguing in the middle of the store. PO Soto grabbed § 87(2)(b) by the shoulders and pushed him against the back wall, approximately eight to ten feet. § 87(2)(b) could not tell from his angle whether § 87(2)(b) actually hit the back wall, nor did he see PO Soto touch § 87(2)(b) anywhere else on his body. After the officer left, § 87(2)(b) shut down his store for the day.

Two days later, on June 7, 2005, PO Soto returned to the store and spoke with § 87(2)(b) telling him that he should have closed his store for five days. § 87(2)(b) did not hear PO Soto threaten to close down § 87(2)(b)'s store permanently, say "you Chinese people" or threaten to arrest § 87(2)(b) though he was not listening very closely.

§ 87(2)(b)

§ 87(2)(b) works at the store right next to § 87(2)(b)'s store. She was interviewed by the CCRB on June 8, 2005. She stated that on June 5, 2005, at approximately 11:00 AM, she heard a ruckus coming from next door and went over to investigate. She saw PO Soto holding § 87(2)(b) against the back wall of his store. PO Guerra motioned for her to leave, so she did.

§ 87(2)(b)

§ 87(2)(b) works at a store in the same space as § 87(2)(b)'s store. She was interviewed by the CCRB on June 28, 2005. She stated that on June 5, 2005, she saw § 87(2)(b) get into an argument with PO Soto. PO Soto pushed § 87(2)(b) approximately ten feet, from the middle of the store to the back wall, shaking him while he did so. § 87(2)(b) did not hear the conversation between § 87(2)(b) and PO Soto, but she stated that after PO Soto left, § 87(2)(b) closed his store for the day. § 87(2)(b) did not witness the events of June 7, 2005.

Officer Statements

PO Nicholas Soto

PO Nicholas Soto was interviewed by the CCRB on June 28, 2005. He did not have any memo book entries or other paperwork documenting his interaction with § 87(2)(b). He stated that on June 5, 2005, he was assigned to a foot post on § 87(2)(b), which is his regular post. At approximately 11:00 AM, PO Soto and his partner, PO Daniel Guerra, passed by § 87(2)(b). PO Soto stated that he has had interaction with the proprietor, § 87(2)(b), on previous occasions and knows him to sell counterfeit merchandise. When PO Soto sees § 87(2)(b) selling counterfeit merchandise, he frequently instructs § 87(2)(b) to close down his store for the day, and § 87(2)(b) routinely becomes argumentative when instructed to do so. On one occasion on an unknown date, § 87(2)(b) followed PO Soto on his patrol of § 87(2)(b) begging him to reopen his store after PO Soto had closed it for the day. PO Soto did not relent. PO Soto stated that he would have the authority to arrest § 87(2)(b) instead of shutting his store down for the day, but doing so requires many police officers and a great deal of time because the officers must seize and catalog § 87(2)(b)'s merchandise, leaving much of § 87(2)(b) without police presence.

On this date, PO Soto saw that § 87(2)(b)'s store was selling counterfeit Louis Vuitton and Coach handbags. He instructed § 87(2)(b) to shut down his store, but only for a single day. § 87(2)(b) became very animated and upset. He started to complain that it was not fair that PO Soto was closing down his store and stood approximately one or two feet away from PO Soto while he was talking, sticking his finger in PO Soto's face. Because § 87(2)(b) was standing so close to him, PO Soto twice "placed his hand on § 87(2)(b)'s] chest and extended [his] arm in order to "create a distance between [PO Soto] and § 87(2)(b). PO Soto stated that he did not push § 87(2)(b) however. After PO Soto touched § 87(2)(b), § 87(2)(b) was standing two or three feet away from PO Soto. PO Soto spoke to § 87(2)(b) for a short period longer, then exited the store and waited for § 87(2)(b) to close down. PO Soto did not call a patrol supervisor to the scene to approve of his closure of § 87(2)(b)'s store, nor did he fill out any additional paperwork or make note of the incident in his memo book.

On June 6, 2005, PO Soto was not working on § 87(2)(b) but he learned from PO Guerra that § 87(2)(b) was claiming that PO Soto had injured him. PO Soto sought § 87(2)(b) out the next day to discuss the alleged

injury. § 87(2)(b) showed PO Soto a scratch on his shoulder. When PO Soto insisted that he did not cause the scratch, § 87(2)(b) “went crazy again.” PO Soto spoke with § 87(2)(b) but did not tell him he might be arrested because “there was no reason to.” He also never threatened to shut down § 87(2)(b)’s store permanently. After PO Soto spoke with § 87(2)(b), § 87(2)(b) and § 87(2)(b) approached him. They both indicated to PO Soto that they knew PO Soto had not done anything wrong. PO Soto took down their names and contact information and provided these during his CCRB interview.

PO Daniel Guerra

PO Daniel Guerra was interviewed by the CCRB on July 8, 2005. He did not have any entries in his memo book regarding this incident. § 87(2)(g)

PO Guerra stated that on June 5, 2005, he and PO Soto were patrolling § 87(2)(b). They walked past § 87(2)(b) at approximately 11:00 AM. PO Soto told PO Guerra that he had seen § 87(2)(b) sell a customer a counterfeit handbag. PO Guerra did not see the handbags for sale. He still assumed that PO Soto’s assessment was correct, however, because PO Guerra knows that § 87(2)(b) has a warehouse around the corner where he keeps his counterfeit merchandise. When customers wish to purchase a handbag, they point out a picture in a book of merchandise, and § 87(2)(b) or § 87(2)(b) will retrieve the merchandise from around the corner and give it to the customer. PO Guerra also stated that he and PO Soto had participated in a one-day training session in order to be able to identify counterfeit merchandise. The training was put on by Louis Vuitton, Kate Spade, Coach and other manufactures of frequently copied goods. The training taught the officers the features of each manufacturers’ goods and how to distinguish their goods from counterfeit by characteristics such as the quality of the workmanship.

Instead of shutting down § 87(2)(b) and § 87(2)(b)’s store, PO Soto and PO Guerra decided to shut it down for the day because arresting § 87(2)(b) and § 87(2)(b) and cataloging their merchandise would take too many officers too much time and leave much of § 87(2)(b) without police presence. He stated that this alternative had been approved by their commanding officer, though PO Guerra and PO Soto did not notify their patrol supervisor that they were shutting down § 87(2)(b)’s store. When PO Soto informed § 87(2)(b) that they should shut down their store, § 87(2)(b) became very upset and “got in PO Soto’s face,” standing about two inches from PO Soto. PO Soto never touched § 87(2)(b) however, and PO Guerra was watching him the entire time. Shortly thereafter, PO Soto and PO Guerra left the store.

Lt. Robert Pollastro

Lt. Robert Pollastro is the Administrative Lieutenant of the 1st Pct. According to Lt. Vincent Costagliola, the Integrity Control Officer of the 1st Pct., Lt. Pollastro is the most knowledgeable individual in the 1st Pct. concerning the procedures for counterfeit merchandise. He was interviewed by telephone on July 26, 2005.

Lt. Pollastro stated that if an officer suspects a merchant of selling counterfeit goods, he must ascertain both that the goods are counterfeit and that they are for sale. If the merchandise is in plain view, these requirements are relatively easily satisfied, but if the merchandise is not on the premises, but around the corner in a warehouse, an undercover officer must purchase the merchandise before making an arrest. Once an officer determines that the merchant is selling illegal counterfeit merchandise, he may either issue the merchant a summons or arrest the merchant. In either case, a patrol supervisor is notified, and the merchandise must be seized and cataloged. If the merchant abandons his store before the officers can issue a summons or arrest him, the merchandise may be seized. If three arrests, summons or seizures of merchandise occur at the same location within a given period of time, the NYPD may, in conjunction with the Department for Consumer Affairs, file a nuisance abatement claim against the store. Only when a judge approves the nuisance abatement claim can the store be shut down for any period of time.

Lt. Pollastro stated that officers are not encouraged or even allowed to shut down a particular merchant’s store for the day in lieu of arresting the merchant or issuing a summons. He stated unequivocally, “we can’t tell a legitimate store to shut down.” Occasionally, merchants in Chinatown voluntarily close their

stores for the day when they see the police coming presumably because they are breaking the law. The NYPD, however, “[does not] encourage” merchants to shut down their stores, even voluntarily.

Further officer statements

§ 87(2)(g)
[REDACTED]

Civilian and Officer Histories

As of July 25, 2005, the NYPD discontinued the CCRB's direct access to the BADS database. Although the NYPD is fulfilling the CCRB's request for BADS records, it has refused to provide the CCRB with the arrest histories of CCRB witnesses. This the first CCRB case for both PO Guerra and PO Soto.

Conclusions and Recommendations

Disputed and Undisputed Facts

It is not in dispute that on June 5, 2005, PO Nicholas Soto and PO Daniel Guerra instructed § 87(2)(b) and § 87(2)(b) to shut down their store. An argument ensued between PO Soto and § 87(2)(b) during which PO Soto pushed § 87(2)(b). It is also not in dispute that on June 7, 2005, PO Soto and § 87(2)(b) got into another verbal altercation.

§ 87(2)(g)
[REDACTED]

Credibility

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g)
[REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED]

Allegation A: PO Nicholas Soto instructed § 87(2)(b) and § 87(2)(b) to close their store on June 5, 2005.

Allegation B: PO Daniel Guerra instructed § 87(2)(b) and § 87(2)(b) to close their store in June 5, 2005.

It is not in dispute that PO Soto and PO Guerra instructed § 87(2)(b) and § 87(2)(b) to close down their store. Although PO Guerra stated that the procedure he followed was sanctioned by his superiors, Lt. Pollastro, the Administrative Lieutenant of PO Guerra's command, stated that such was not the case. § 87(2)(g) [REDACTED]

[REDACTED]

§ 87(2)(g) [REDACTED]

[REDACTED] It is recommended that these allegations be *substantiated*.

Allegation C: PO Nicholas Soto used physical force against § 87(2)(b) on June 5, 2005.

PO Soto admitted that he used some amount of physical force against § 87(2)(b) § 87(2)(g) [REDACTED]

§ 87(2)(g)

According to Patrol Guide Procedure 203-11, an officer may use physical force against a civilian only “to effect an arrest or take a mentally ill or emotionally disturbed person into custody.” § 87(2)(g)

. In Police Department v. Mundo, OATH Index No. 1917/99 (July 26, 1999), the ALJ found § 87(2)(g) that force used by the officer, “while relatively minimal, was gratuitous in nature, an abuse of respondent's power, and a discredit to the Department.” § 87(2)(g) it is recommended that this allegation be *substantiated*.

Allegation D: PO Nicholas Soto threatened to close § 87(2)(b) and § 87(2)(b)'s store on June 7, 2005.

Allegation E: PO Nicholas Soto threatened to arrest § 87(2)(b) on June 7, 2005.

As discussed above, § 87(2)(b) and § 87(2)(b) do not speak English fluently and were not able to provide a statement to the CCRB without the aid of a translator. § 87(2)(g)

. § 87(2)(b), the civilian witness whose grasp of the English language was best, did not hear PO Soto make any of these remarks, though he stated that he was not paying particularly close attention to the conversation between PO Soto and § 87(2)(b) § 87(2)(g). It is recommended that these allegations be *unsubstantiated*.

Allegations not Pleaded

§ 87(2)(b) and § 87(2)(b) stated that PO Guerra claimed that their store should have been closed for two weeks instead of just a day when he saw them on June 6, 2005. § 87(2)(g)

§ 87(2)(b) and § 87(2)(b) both stated that PO Soto referred to them as “you Chinese people” on June 7, 2005. § 87(2)(g)

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: